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March 9, 2017					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO. 1953(I)

KAIRAT NURGAZINOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

ORDER DENYING MOTION TO INTERVENE

The complaints in these consolidated proceedings allege that Complainants purchased cars from a company owned and controlled by Sergey Kapustin. Kapustin is not a party to these proceedings. Respondent Empire United Lines Co. (Empire) is a non-vessel-operating common carrier licensed by the Commission. Respondent Michael Hitrinov a/k/a Michael Khitrinov (Hitrinov) owns and controls Empire. Complainants allege that Respondents violated the Shipping Act of 1984 when Empire failed to deliver the cars they claim Kapustin shipped to them in Finland.

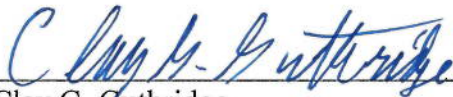
Counsel for Complainants in this proceeding represented the Kapustin companies that allegedly sold the cars to Complainants in a civil action against the FMC Respondents in the United States District Court for the Eastern District of New York. *Global Auto, Inc. v. Hitrinov*, No. 13-cv-2479 (E.D.N.Y. Apr. 24, 2013) (complaint filed) (Doc. 1). On July 13, 2016, Kapustin filed a motion to intervene in the FMC proceedings to challenge the propriety of the attorney who

represented his companies in the New York case representing persons who allege they purchased cars from him in these related proceedings before the Commission. Kapustin also claims that his former attorney filed documents in these proceedings that had been produced in the New York proceeding pursuant to a confidentiality order that forbade their use in any other case for any other purpose. Respondents Empire and Hitrinov state that they have no objection to the intervention. Complainants oppose intervention.

The motion to intervene is denied. The propriety of his former attorney's representation of purchasers who allegedly purchased cars from Kapustin's companies in these proceedings against Respondents is a matter that should be addressed to the attorney grievance committee appointed by the appropriate Appellate Division of the New York State Supreme Court. The Eastern District of New York should determine whether use in this proceeding of documents produced in the New York proceeding violated a confidentiality order entered by that court.

Orders are entered on the following related motions.

- Kapustin's Motion to Further Supplement filed August 3, 2016, is **GRANTED**.
- Complainants' Motion for Leave to File Reply to Motion for Extension of Time to Respond to Motion to Intervene filed August 18, 2016, is **GRANTED**.
- Complainants' Notice of Cross-Motion filed August 19, 2016, is **DENIED**.
- Kapustin's Motion to Strike and Seal filed August 19, 2016, is **DENIED**.



Clay G. Guthridge
Administrative Law Judge